Louisa County Water Authority
Board of Directors
June 12, 2024

MEMBERS PRESENT: Mr. Judson Foster, Chairman; Mr. Douglas Smith, Vice-Chairman; Mr. Robert Morgan; Mr. Tom Filer; Mr. David Kies; Mr. Byron Wilson

MEMBERS ABSENT: Mr. Bob Hardy

OTHERS PRESENT: Ms. Pam Baughman, General Manager; Ms. Danielle Mychajlonka; Human Resources Manager; Mr. Manning Woodward, Louisa County Board of Supervisors; Ms. Mary Johnson, Program Manager; Mr. Zanes Talley, Whiteford, Taylor & Preston LLP

A. Call to Order

Chairman Foster called the meeting to order at 6:30 pm.

1. ADOPTION OF THE AGENDA

Chairman Foster asked if there were any changes or additions to the agenda. The General Manager asked to change Item 5.B and 5.C from April to May 2024. Mr. Filer made a motion to adopt the agenda as amended. The motion was seconded by Mr. Kies and carried 6-0 among the members present.

2. PUBLIC HEARING – WATER & SEWER RATE INCREASE

A. PUBLIC HEARING NOTICE

Chairman Foster spoke to the public in attendance. Then opened the Public Hearing to receive comments from the public regarding the proposed rate increase to water and sewer rates.

- Mr. Lawrence Alpern spoke against the advertised rate increase of 24%.
- Mr. Garland Nuckols spoke against the advertised rate increase of 24%.
- Mr. Dan Kerestes spoke against the advertised rate increase of 24%.
- Mr. Bob Babyok spoke against the advertised rate increase of 24%.

Chairman Foster asked if anyone else in attendance wished to address the Board. Hearing no one ask to speak, Chairman Foster closed the Public Hearing and asked the Board members if they wished to comment.

Chairman Foster reminded the attendees that the Authority meetings are open to the public. He went on to say that inflation has hit the utility business hard for equipment, supplies, and chemicals; an increase would need to be applied for the Authority to be able to purchase goods and services needed to meet regulation and continue providing water and sewer services.

Mr. Filer spoke to the public in attendance stating that the Authority will revisit the consecutive system discount once the Town of Louisa meters have been replaced. He stated that with the Authority estimating usage the Town has more than likely not been paying for all the water being consumed by the Town customers.

Mr. Smith spoke to the fact that the Authority expenditures have exceeded revenues all year and that this practice was unsustainable.

Mr. Wilson spoke to the public in attendance stating that the Board and staff have worked on budgets and discussed rates for most of the fiscal year. Echoing Mr. Smith's concerns for sustainability and stating that it was the Board's fiscal responsibility to ensure our obligations can be met.

Upon completion of the discussion and Board member statements, Mr. Smith made a motion to increase the water and sewer rates by 20%. The motion was seconded by Mr. Filer. A roll call vote was requested with the following results:

Mr. Foster	NO
Mr. Smith	YES
Mr. Filer	YES
Mr. Hardy	ABSENT
Mr. Kies	YES
Mr. Morgan	YES
Mr. Wilson	YES

The motion was carried 5-1 among the members present.

B. Presentations

3. RESOLUTION RECOGNIZING WARREN HUNTER MARTIN'S YEARS OF SERVICE

The Board recognized Warren Hunter Martin's years of service with a Resolution passed at the May 8, 2024 Louisa County Water Authority Board of Directors meeting.

C. Citizen Information

D. Consent Agenda

4. APPROVAL OF THE MINUTES:

A. MAY 8, 2024 – REGULAR BUSINESS MEETING

5. TREASURER'S REPORT:

A. O & M REPORT / CAPITAL REVENUE & EXPENDITURE REPORT– MAY 2024
B. APPROVAL OF DISBURSEMENTS – MAY 2024
C. CONSTRUCTION FUND – MAY 2024

The Board reviewed the Consent Agenda and the Treasurer's Report.

Upon completion of the review, Mr. Smith made a motion to approve the Consent Agenda and Treasurer's Report. The motion was seconded by Mr. Kies and carried 6-0 among the members present.

E. Old Business

6. UPDATE – JAMES RIVER WATER PROJECT

Much of the right-of-way has been cleared and grubbed. Late this week or early next week, pipe installation will begin. The permits are in hand for the Rivanna River crossing.

The Treatment Plan for any artifacts discovered is still being negotiated. This is part of the Phase III Cultural Resources for the Army Corps of Engineers Permit. Once all parties agree on the Treatment Plan, any artifacts recovered will be handled as outlined in the plan, minimizing any work stoppage. The pump station construction will begin once the Treatment Plan is finalized. There are three additional sites for archaeological concern being added to the permit; at the pump station, south of the train tracks along where the access road will be constructed and one north of the train tracks. All sites are on the property acquired for the pump station location.

Once pipe installation begins, it will last for 6 – 9 months, with a goal of each crew installing approximately 1,000 feet of pipe per week. There are three pipe crews and an E&S crew working now.

The timeline for substantial completion was scheduled for September 2026, provided the cultural resources work had been completed in January of 2024. Since that is not the case, the substantial completion date will be pushed back.

7. ZION CROSSROADS WELL SYSTEM UPDATES

A. SPRING CREEK #1 & #2

The Board was informed that Spring Creek Well #1 has been inspected and is currently online, pumping water to the system. Spring Creek Well #2 will be placed into service once the meter is received and installed.

8. UPDATE – NEW BRIDGE WWTP

A. DEQ APPROVAL TO MOVE FORWARD WITH PILOT TEST

The Authority has received approval to move forward with a chemical addition to aid in the reduction of Total Suspended Solids (TSS). The chemical is a polymer with an oxidation component called FLOPAM EM 640 CT. The chemical representative was onsite June 10, 2024 to install the pump and tankage for the chemical addition. This is considered a pilot test and if proven effective, will need to be added to our permit for continued use.

It has been reported in the news that several visitors to Lake Anna became sick with E-coli. The New Bridge facility has a limit of 126, the samples collected in May consisted of one with a result of 33, the three remaining were 0's. The sample before Memorial Day was 0 and the sample after Memorial Day was 0.

9. LEAD SERVICE LINE INVENTORY

Of the sixteen sites we need to complete onsite inventory of service lines:

Three approved sites left to complete. Two owners have not provided access. Eleven are complete with five poly pipe and six copper service lines.

10. DISCUSSION – PROPOSED BUDGET

A. SUMMARY STATEMENT OF INCOME
B. DETAILED STATEMENT OF INCOME
C. SUMMARY STATEMENT OF EXPENSES
D. DETAILED STATEMENT OF EXPENSES
F. COMBINED STATEMENT OF INCOME AND EXPENSES
G. REPAIR AND REPLACEMENT OF CAPITAL EQUIPMENT LISTING
H. FY2025 LOUISA COUNTY WATER AUTHORITY – BUDGET SUMMARY

The Board reviewed the budget information provided. Upon completion of the review Mr. Filer made a motion to adopt the expense budget as presented and the income budget with the newly adopted rate increase of 20%. The motion was seconded by Mr. Wilson and carried 6-0 among the members present.

11. LOUISA COUNTY – APPROVED BUDGET

A. LOUISA COUNTY – CAPITAL IMPROVEMENT BUDGET
B. LOUISA COUNTY – O & M BUDGET

The Board reviewed the Louisa County approved budget. In the Capital Improvement Budget, the continued funding for the Louisa Regional WWTP – Ammonia Nitrogen removal upgrade and Bowlers Mill Dam improvements were included. Additionally, $350,000 for the Northeast Creek WTP – Sludge-Vac system and the $200,000 for the right-of-way clearing equipment were also approved.

In the O & M Budget, the County's share of operations of the Louisa Regional WWTP are included.

Upon completion of the review, Mr. Filer made a motion to authorize the General Manager to request the funding from the County after July 1, 2024 for the Northeast Creek WTP Sludge-Vac and right-of-way clearing equipment. The motion was seconded by Mr. Morgan and carried 6-0 among the members present.

F. New Business

G. Reports

H. General Manager's Report

● **May levels**: At the end of May 2024, the static well levels were up 2.3 feet from the end of April 2024 levels. From May 2023 to May 2024, the well levels are up approximately 1.3 feet.

The smaller table shows static well levels located nearer to the production wells. These levels are up approximately 4.6 feet from the end of April 2024 levels. From May 2023 to May 2024, the well levels are up approximately 13.2 feet.

As of May 27, 2024, the Department of Environmental Quality Drought website is indicating normal conditions exist for precipitation, groundwater, reservoir levels and stream flow.

● The current past-due listing is down to $6,472.34 from the past-due listing provided in the General Manager's Report, which reported the past-due balance of $8,645.80.

● Several interviews are scheduled for a water plant operator trainee or water plant operator to fill the position recently made available when a prospect rescinded an offer. Additionally, interviews are being scheduled for a wastewater operator trainee or wastewater operator to replace our Chief Operator when she retires later this year.

I. Committees

A. PERSONNEL COMMITTEE

The Personnel Committee met on May 29, 2024. The committee approved the vehicle policies, cell phone policy and the salary bands. Salary bands and other personnel matters will be discussed in closed session. All other policies, including an On-Call policy will be presented for approval by the Board at the July 10, 2024 meeting.

B. 2X2 MEETING

Scheduled for June 13, 2024, at the County Administration Building, second floor administrative meeting room at 2:00 pm. Mr. Smith, Mr. Filer, and Mr. Woodward were all unavailable for the 2x2 meeting on June 13, 2024. It will be rescheduled.

J. Short Notice Items

K. Closed Session:

A. CLOSED SESSION PURSUANT TO VA. CODE SECTION 2.2-3711(A)(7) CONSULTATION WITH LEGAL COUNSEL AND BRIEFINGS BY STAFF MEMBERS OR CONSULTANTS PERTAINING TO ACTUAL OR PROBABLE LITIGATION, WHERE SUCH CONSULTATION OR BRIEFING IN OPEN MEETING WOULD ADVERSELY AFFECT THE NEGOTIATING OR LITIGATING POSTURE OF THE PUBLIC BODY.

B. CLOSED SESSION PURSUANT TO VA. CODE SECTION 2.2-3711(A)(1) TO DISCUSS AND CONSIDER PERSONNEL MATTERS; INCLUDING THE DISCIPLINE, APPOINTMENT, ASSIGNMENT, PERFORMANCE, AND SALARIES OF SPECIFIC APPOINTEES AND EMPLOYEES.

Mr. Kies made a motion to close the regular open meeting and immediately reconvene in closed session. The motion was seconded by Mr. Morgan and carried 6-0 among the members present.

RETURN TO OPEN MEETING:

Chairman Foster closed the closed session and immediately reconvened in regular open meeting at 7:49 pm.

CERTIFY:

Mr. Foster read the following statement prior to the vote to certify the closed session.

"Pam will now poll members to certify that, to the best of your knowledge, only public business matters lawfully exempted from the open meeting requirements under the Virginia Freedom of Information Act, and as identified in the motion for which the closed meeting was convened, were discussed, and considered by the Board. If any member believes that the Board varied from the purpose stated for the closed meeting, please state so and the reason prior to casting the vote." A roll call vote was requested with the following results:

Mr. Foster	YES
Mr. Smith	YES
Mr. Filer	YES
Mr. Hardy	ABSENT
Mr. Kies	YES
Mr. Morgan	YES
Mr. Wilson	YES

The motion was carried 6-0 among the members present.

Mr. Smith made a motion to adopt the salary bands. The motion was seconded by Mr. Wilson and carried 6-0 among the members present.

Next meeting date - The next business meeting is scheduled for July 10, 2024.

L. Adjournment

THERE BEING NO FURTHER BUSINESS, Mr. Kies made a motion to adjourn at 7:51 pm. The motion was seconded by Mr. Filer and carried 6-0 among the members present.

BY ORDER OF:

Judson Foster
Chairman
LOUISA COUNTY WATER AUTHORITY